



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: PLTA-24-6: An ordinance repealing Chapter 12.28, Downtown Graffiti Abatement Pilot Program of Title 12, Streets, Sidewalks and Public Places, of the municipal code of the City of Cheyenne, Wyoming.
Date: April 14, 2025

Background:

The item for consideration is an amendment to municipal code and is approved by ordinance. The proposed Governing Body review schedule is as follows:

- Introduction and Referral: April 14, 2025
- Public Services Committee: April 21, 2025
- Second reading: April 28, 2025
- Public Services Committee: May 5, 2025
- Third and final reading: May 12, 2025

The ordinance was passed on February 11, 2019, to improve the City's graffiti abatement process after then Downtown Development Authority (DDA) staff believed the police-run program was ineffective. That prior program required property owners to contact the Police Department, sign a damage waiver, and volunteers removed graffiti when able which resulted in inconsistent and unpredictable removal times. The DDA proposed a more proactive pilot program, run by the DDA, to streamline removal timelines and committed funding to graffiti removal (\$5,000 initially and \$15,000 in future funding). The program was a pilot program with an expiration date of November 1, 2020 (Section 3 of the ordinance). Presently, \$3,000 is budgeted annually for graffiti removal and removal is typically limited to vulgar/obscene messages or images on sidewalks and occasionally on buildings.

After a recent review, City staff concluded that detailing this program specifically for the DDA by ordinance is unnecessary. A City-wide ordinance and a separate memorandum of understanding (MOU) between the City and the DDA would be more appropriate. Staff also has concerns about the appropriateness of a City ordinance directing the DDA to perform specific tasks with the DDA's independently managed funds, as they are a quasi-governmental entity funded outside the City by a mill levy, with exclusive oversight of their finances.

Attachments:

1. Proposed Ordinance
2. Ordinance No. 4259 (Approved February 11, 2019)

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE REPEALING CHAPTER 12.28, DOWNTOWN GRAFFITI ABATEMENT PILOT PROGRAM OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 12.28, Downtown Graffiti Abatement Pilot Program, of Title 12, Streets, Sidewalks and Public Places, of the City of Cheyenne, Wyoming, is hereby repealed.

~~Chapter 12.28 DOWNTOWN GRAFFITI ABATEMENT PILOT PROGRAM~~

~~12.28.010—Creation.~~

~~There is hereby created the "Downtown Graffiti Abatement Pilot Program" (pilot program).~~

~~12.28.020—Definitions.~~

~~The following definitions shall apply in the interpretation and enforcement of this chapter:~~

~~"Downtown Development Authority (DDA)" means the body corporate created by the city of Cheyenne pursuant to Chapter 2.76 of the Municipal Code of the city of Cheyenne.~~

~~"Graffiti" means any unauthorized inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted or engraved on or otherwise affixed to any surface or public or private property, to the extent that the graffiti was not given written authorization in advance by the property owner, or, despite written advance authorization, is otherwise deemed a public nuisance by the downtown development authority.~~

~~"Property" means any real property, including structures and fixtures.~~

~~"Property owner" means a person, real or corporate, partnership or other business venture owning any property within the boundaries of the downtown development district as set forth in Section 2.76.040.~~

~~"Structure" means any improvement to real property and shall include, but not be limited to, buildings, walls, doors, utility boxes, sidewalks, windows, fixtures, sheds, storage units, semi-tractor trailers, mobile storage and masonry.~~

~~12.28.030—Prohibited acts.~~

~~It shall be unlawful for any person to apply graffiti to any natural or man-made surface on any city-owned property or, without the permission of the property owner on any non-city-owned property.~~

~~12.28.040—Program creation and opt-out.~~

~~A. The DDA shall develop and implement the pilot program inside the boundaries of the downtown development district designated in Section 2.76.040.~~

~~B. The pilot program shall include at least the following elements:~~

- ~~1. Written notification sent to all property owners by certified mail of the scope and operation of the pilot program;~~
- ~~2. An option to opt-out of the pilot program by responding in writing to the DDA within thirty (30) days of the postmarked date of the DDA's written notification of the pilot program. Any property owner failing to respond to the DDA's notice as set forth in this section is presumed to consent to inclusion in the pilot program; and~~
- ~~3. A property owner's failure to respond to the opt-out notice of the pilot program as set forth above shall be deemed a release of the city and DDA from liability for property damage and personal injury as it relates to graffiti abatement performed in accordance with the provisions of this chapter.~~

~~C. Written notification to all property owners shall be addressed to the mailing address of the property owner as identified by the Laramie County Tax Assessor on the Laramie County Cooperative GIS interactive parcel map site.~~

~~12.28.050—Removal of graffiti by DDA.~~

~~A. Whenever the DDA determines that graffiti exists within the boundaries of the downtown development district on property which is visible to the public, the DDA may remove such graffiti to the extent allowed within their annual line item budget.~~

~~B. Graffiti may be removed pursuant to the following provisions:~~

- ~~1. Use of Public Funds. Whenever the DDA becomes aware or is notified and determines that graffiti is located on publicly or privately owned property viewable from a public or quasi-public place, the DDA shall be authorized to use DDA funds for the removal of the graffiti, or for the painting over, power cleaning, or repairing of the graffiti, but is not authorized to provide for the painting or repair of any more extensive an area than where the graffiti is located.~~

- ~~2. Right of Entry on Private Property. All property located within the boundaries of the downtown development district owned by property owners who fail to opt-out of the pilot program as set forth in Section 12.28.030 will be subject to graffiti abatement by the DDA.~~
- ~~3. The DDA may only abate graffiti existing on property within the downtown development district owned by property owners who did not opt-out of the pilot program.~~
- ~~4. No graffiti determined to exist on property owned by property owners who elect to opt-out of the pilot program shall be abated by the DDA.~~

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ENTITLED: "AN ORDINANCE CREATING CHAPTER 12.28, DOWNTOWN GRAFFITI ABATEMENT PILOT PROGRAM, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, AND PROVIDING PROCEDURES FOR THE OPERATION THEREOF."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That a new Chapter 12.28, Downtown Graffiti Abatement Pilot Program, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

Chapter 12.28

DOWNTOWN GRAFFITI ABATEMENT PILOT PROGRAM

12.28.010 Creation.

There is hereby created the "Downtown Graffiti Abatement Pilot Program" (Pilot Program).

12.28.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

A. "Downtown Development Authority" (DDA) means the body corporate created by the City of Cheyenne pursuant to Chapter 2.76 of the Municipal Code of the City of Cheyenne.

B. "Graffiti" means any unauthorized inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted or engraved on or otherwise affixed to any surface or public or private property, to the extent that the graffiti was not given written authorization in advance by the property owner, or, despite written advance authorization, is otherwise deemed a public nuisance by the Downtown Development Authority.

C. "Property" means any real property, including structures and fixtures.

D. "Property Owner" means a person, real or corporate, partnership or other business venture owning any property within the boundaries of the downtown development district as set forth in Section 2.76.040.

E. "Structure" means any improvement to real property and shall include, but not be limited to, buildings, walls, doors, utility boxes, sidewalks, windows, fixtures, sheds, storage units, semi-tractor trailers, mobile storage and masonry.

12.28.030 Prohibited Acts.

It shall be unlawful for any person to apply graffiti to any natural or man-made surface on any city-owned property or, without the permission of the property owner on any non-city-owned property.

12.28.040 Program Creation and Opt-Out.

A. The DDA shall develop and implement the Pilot Program inside the boundaries of the downtown development district designated in Section 2.76.040.

B. The Pilot Program shall include at least the following elements:

1. Written notification sent to all property owners by certified mail of the scope and operation of the Pilot Program;

2. An option to opt-out of the Pilot Program by responding in writing to the DDA within thirty (30) days of the postmarked date of the DDA's written notification of the Pilot Program. Any property owner failing to respond to the DDA's notice as set forth in this section is presumed to consent to inclusion in the Pilot Program; and

3. A property owner's failure to respond to the opt-out notice of the Pilot Program as set forth above shall be deemed a release of the City and DDA from liability for property damage and personal injury as it relates to graffiti abatement performed in accordance with the provisions of this chapter.

C. Written notification to all property owners shall be addressed to the mailing address of the property owner as identified by the Laramie County Tax Assessor on the Laramie County Cooperative GIS interactive parcel map site.

12.28.050 Removal of Graffiti by DDA.

A. Whenever the DDA determines that graffiti exists within the boundaries of the downtown development district on property which is visible to the public, the DDA may remove such graffiti to the extent allowed within their annual line item budget.

B. Graffiti may be removed pursuant to the following provisions:

1. Use of Public Funds. Whenever the DDA becomes aware or is notified and determines that graffiti is located on publicly or privately owned property viewable from a public or quasi-public place, the DDA shall be authorized to use DDA funds for the removal of the graffiti, or for the painting over, power cleaning, or repairing of the graffiti, but is not authorized to provide for the painting or repair of any more extensive an area than where the graffiti is located.

2. Right of Entry on Private Property. All property located within the boundaries of the downtown development district owned by property owners who fail to opt-out of the Pilot Program as set forth in Section 12.28.030 will be subject to graffiti abatement by the DDA.

3. The DDA may only abate graffiti existing on property within the downtown development district owned by property owners who did not opt-out of the Pilot Program.

4. No graffiti determined to exist on property owned by property owners who elect to opt-out of the Pilot Program shall be abated by the DDA.

Section 2. This ordinance shall be in full force and effect upon its approval and publication.

Section 3. This Pilot Program shall be automatically terminated unless renewed by the Governing Body prior to November 1, 2020. In the event the Governing Body fails to renew the Pilot Program, this ordinance shall cease to be of any further force or effect.

FIRST READING: January 14, 2019

SECOND READING: January 28, 2019

THIRD AND FINAL READING: February 11, 2019


Marian J. Orr, Mayor

(SEAL)

Attest:


Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle
January 16, 2019